

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Abigail Marean	Team: Team # 3	CCRB Case #: 200602101	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 02/16/2006 7:20 PM	Location of Incident: West 116th Street between Lenox and Fifth Avenues	Precinct: 28	18 Mo. SOL 8/16/2007	EO SOL 8/16/2007	
Date/Time CV Reported Fri, 02/17/2006 12:59 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 02/17/2006 2:06 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM George Couluris	11414	906015	028 PCT
2. POM James Nagle	29571	927257	028 PCT
3. SGT Thomas Alps	03128	926498	028 PCT
4. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM John Mateojerez	06590	930662	028 PCT
2. POF Angelica Salmeron	07116	939408	028 PCT
3. POM James Hughes	08693	906485	028 PCT
4. POM Josue Rivera	03516	931051	028 PCT
5. POM Juan Berrio	28430	932096	028 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM George Couluris	Force: PO George Couluris pointed his gun at § 87(2)(b)	
B.POM James Nagle	Force: PO James Nagle pointed his gun at § 87(2)(b)	
C.SGT Thomas Alps	Abuse: Sgt. Thomas Alps frisked § 87(2)(b)	
D.SGT Thomas Alps	Abuse: Sgt. Thomas Alps searched § 87(2)(b)	
E. An officer	Abuse: An officer searched the car in which § 87(2)(b) was an occupant.	

Synopsis

The CCRB received this case via the call processing system on February 17, 2006. At about 7:20 PM on February 16, 2006, § 87(2)(b) exited a restaurant located on West 116th Street in Manhattan and observed an officer, later identified as PO George Couluris of the 28th Precinct, in the process of issuing a § 87(2)(b) summons to his vehicle. § 87(2)(b) stated he asked PO Couluris not to issue the summons and PO Couluris obliged, at which point he got in his vehicle and drove away from the location. PO Couluris stated § 87(2)(b) sped away from the location while he was in the process of issuing the summons. PO Couluris and his partner, PO James Nagle, pursued § 87(2)(b)'s vehicle. Both vehicles stopped at the intersection of West 116th Street and 5th Avenue. Sgt. Thomas Alps, also of the 28th Precinct, arrived at the location. § 87(2)(b) alleged that PO Couluris and PO Nagle exited their vehicle and approached him with their guns pointed (Allegations A and B). He alleged that officers requested that he exit the vehicle, to which he complied. He alleged that Sgt. Alps then frisked him (Allegation C) and searched him (Allegation D). § 87(2)(b) alleged that his vehicle was searched as well (Allegation E). § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b), a § 87(2)(b) male, provided a telephone statement on March 6, 2006 (Enc. 7A). He provided a statement at the CCRB on March 22, 2006 (Enc. 8A-D) § 87(2)(g)

§ 87(2)(b)

On February 16, 2006, at about 7:20 PM, § 87(2)(b) and his § 87(2)(b) son went to an African restaurant on the south side of West 116th Street between Lenox Avenue and 5th Avenue. As he exited the restaurant several minutes later with his dinner, he saw that a police officer, PO #1, later identified by the CCRB as PO George Couluris of the 28th Precinct, was at his vehicle about to issue him a § 87(2)(b) summons. PO Couluris is a white male, 5'11", heavyset; he was dressed in uniform. A second officer, PO #2, later identified by the CCRB as PO James Nagle of the 28th Precinct, was also in the police vehicle. PO Nagle is a white male; he was also dressed in uniform. § 87(2)(b) approached his vehicle, told PO Couluris that he was about to move his vehicle and asked him not to issue a summons. PO Couluris said "ok." § 87(2)(b) got in his vehicle and drove eastbound down West 116th Street.

After driving about two blocks, two different officers, PO #3 and PO #4, later identified by the CCRB as PO Mateojerez and PO Salmeron, stopped § 87(2)(b)'s vehicle. § 87(2)(b) could not provide descriptions of these officers, although he stated that one officer was a female. PO Couluris and PO Nagle pulled up behind § 87(2)(b)'s vehicle in their own vehicle and put their lights on as well. Several police vehicles were soon at the location. A black unmarked vehicle with two plainclothes officers inside, PO #5 and PO #6, later identified by the CCRB as Sgt. Alps and PO Rivera, arrived and parked on the westbound side of the street. Sgt. Alps and PO Rivera are white males; they were dressed in plainclothes. § 87(2)(b) was driving in the left lane. When the officers indicated he needed to stop, § 87(2)(b) complied and stopped in the left lane of traffic. PO Couluris and PO Nagle exited their vehicle and approached § 87(2)(b) one on the left and one on the right, with their guns drawn and pointed at § 87(2)(b). § 87(2)(b) did not make this allegation during his telephone statement. They instructed § 87(2)(b) not to move and then asked him to exit his vehicle. § 87(2)(b) complied. In his telephone statement, § 87(2)(b) alleged that officers physically took him out of the vehicle. Either PO Couluris or PO Nagle, § 87(2)(b) did not know which, pulled § 87(2)(b)'s hands behind his back and pushed him against his vehicle such that he was facing it. § 87(2)(b) did not include this

allegation during his telephone statement. The officers did not handcuff him. PO Couluris or PO Nagle, again § 87(2)(b) did not know which, used his leg to kick § 87(2)(b)'s leg; the officer frisked § 87(2)(b)'s entire upper body, his waist and down each leg. § 87(2)(b) was wearing jeans, a T-shirt and a jacket. This same officer searched each of § 87(2)(b)'s jeans pockets. During his telephone statement, § 87(2)(b) did not allege that an officer either frisked or searched him. § 87(2)(b)'s wallet was in his front right jeans pocket; the officer took out his wallet and looked through it. § 87(2)(b) could not specify which officer did what. Either PO Mateojerez or PO Salmeron began searching § 87(2)(b)'s vehicle; the officer searched the glove compartment, under the seats, the frontseat, the backseat and the trunk. The officer put the vehicle's front two and rear two windows down. § 87(2)(b)'s son was still sitting inside the vehicle as it was searched; he was crying. The officers said they were looking for drugs. An officer, § 87(2)(b) did not know which, took the keys out of § 87(2)(b)'s vehicle.

After the officers searched § 87(2)(b) they instructed him to get back in his vehicle. PO Mateojerez and PO Salmeron left the location. § 87(2)(b) was issued five summonses: § 87(2)(b) § 87(2)(b), issued by PO Nagle; summons § 87(2)(b) § 87(2)(b), issued by PO Couluris; summons § 87(2)(b) § 87(2)(b), issued by PO Couluris; summons § 87(2)(b), issued by PO Couluris and § 87(2)(b) summons § 87(2)(b).

Results of Investigation

Attempts to Interview Additional Witnesses

A field visit was conducted to the intersection of § 87(2)(b) on May 18, 2006. A canvass was conducted at § 87(2)(b), a restaurant located on the southeast corner of the intersection. § 87(2)(b) stated he did not witness the incident. Another restaurant, located at the southwest corner of the intersection, was not open at the time of the canvass. A senior center is located on the northwest corner and there is no storefront located on the northeast corner.

Identification of Officers Interviewed

§ 87(2)(b) provided the tax numbers of PO Couluris and PO Nagle at the time he filed the complaint, as provided by the summonses he received. During their statements, both officers cited Sgt. Alps as present during the incident. Sgt. Alps stated he was working with PO Berrio at the time of the incident. The SPRINT report (Enc. 16A) and roll call (Enc. 19A-C) identified PO Mateojerez and PO Salmeron as responding to the location as well. All officers confirmed their involvement in the incident.

Officer Statements

PO George Couluris and PO James Nagle

PO Couluris, a white male, 5'7", 230 lbs., provided an official statement at the CCRB on April 3, 2006 (Enc. 9A-G). PO Nagle, a white male, 5'8", 175 lbs., provided an official statement at the CCRB on April 20, 2006 (Enc. 10A-H). § 87(2)(g)

On February 16, 2006, PO Couluris and PO Nagle worked from 3:00 PM until 11:35 PM. They were in uniform and assigned to vehicle 1516. PO Couluris' memo book entry regarding this incident reads:

1930: car stop at 116th and 5th Avenue. While attempting to serve summons § 87(2)(b) § 87(2)(b), plate number § 87(2)(b) New York registration, gray Ford Explorer 2005, motorist entered vehicle and stated, "Don't give me a summons." I had already written the summons and attempted to place summons on vehicle. Motorist put vehicle in drive and sped away. I attempted to stop motorist at 116th Street and Lenox Avenue. Motorist kept driving, disregarding the police lights and sirens on Department marked

vehicle 1516. I eventually pulled in front of motorist's vehicle to bring motorist to a stop. Motorist stated, "Just give me the fucking ticket, asshole." I then asked motorist to produce driver's license, he refused. I asked him a second time, he still refused. Motorist was then removed from the vehicle and produced a New York driver's license, class E, § 87(2)(b) Street in the Bronx, ID #§ 87(2)(b) expiration § 87(2)(b) which was valid, § 87(2)(b). He was issued a summons. He was also issued a summons § 87(2)(b). The motorist also had two occupants in the backseat of the vehicle, one female approximately § 87(2)(b) of age, as stated by the motorist, and a male, approximately § 87(2)(b) of age, in a seatbelt. § 87(2)(b) and he was issued a summons for that. 96 x 5.

PO Nagle's memo book entry regarding this incident reads:

1930: car stop, West 116th and 5th. § 87(2)(b) summons issued § 87(2)(b). Sprint § 87(2)(b) prepared.

PO Nagle prepared Stop and Frisk report § 87(2)(b) (Enc. 10F) in regard to § 87(2)(b). The report indicates that § 87(2)(b) was stopped at 7:40 PM on the date of incident for criminal possession of a weapon. The report indicates that § 87(2)(b) demonstrated furtive movements and provided evasive, false or inconsistent responses to officers' questions. It indicates that § 87(2)(b) was frisked but not searched and that the reason for the stop was explained to him.

On February 16, 2005, PO Couluris and PO Nagle were driving on West 116th Street. PO Couluris was the operator of the vehicle. PO Couluris noticed several double-parked vehicles, including an SUV which he later learned belonged to § 87(2)(b). This caused moving vehicles to move around them in order to get to the nearby stoplight. There was no snow on the ground. PO Couluris parked the police vehicle behind the double-parked vehicles; he could not remember if he was directly behind § 87(2)(b)'s vehicle. § 87(2)(b) was not inside the vehicle. PO Couluris wrote a § 87(2)(b) summons for § 87(2)(b)'s vehicle and exited his police vehicle to place the summons on the car's windshield. As PO Couluris approached § 87(2)(b)'s vehicle, § 87(2)(b) exited a nearby restaurant, shouting, "Officer, don't write me a summons, don't write me a summons." PO Couluris said, "Sir, I apologize but I already wrote the summons." § 87(2)(b) then got into his vehicle and drove away as PO Couluris was standing on the driver's side of the vehicle. PO Couluris never told § 87(2)(b) that he was permitted to leave the location. PO Couluris still had the summons in his hand. He got back into the police vehicle and followed § 87(2)(b) with the lights and sirens on, trying to pull him over. § 87(2)(b) refused to stop. As PO Couluris was trying to stop him, § 87(2)(b) was picking up speed; PO Couluris could not gauge how fast § 87(2)(b) was driving. PO Nagle estimated that § 87(2)(b) was travelling between 30-45 mph. As this point, PO Couluris felt as though his safety was threatened.

About a block and a half later, as § 87(2)(b) slowed in front of a traffic light, PO Couluris pulled in front of § 87(2)(b)'s vehicle in order to stop him; PO Couluris could not remember how, specifically, he positioned his vehicle. § 87(2)(b)'s vehicle was stopped in the left-hand lane of eastbound West 116th Street. PO Nagle called for another unit to respond because § 87(2)(b)'s behavior was so irrational. Multiple other units responded to the location; PO Couluris and PO Nagle could only specifically cite Sgt. Alps as one of the officers present.

Once they stopped their vehicle, PO Couluris approached the driver's side of § 87(2)(b)'s vehicle and PO Nagle approached the passenger's side. Both PO Couluris and PO Nagle stated that they did not have their guns drawn as they approached the vehicle. They never observed any officer with his/her gun drawn during this incident. As PO Couluris approached, § 87(2)(b) said, "Just give me the fucking summons, you asshole." PO Couluris instructed § 87(2)(b) to turn off the vehicle's ignition and give him his driver's license; § 87(2)(b) refused. PO Couluris requested this at least 2-3 times.

Both PO Couluris and PO Nagle agreed that other officers became involved in the incident. However, PO Couluris stated that supervisors instructed him to back away, at which point they took over the situation, while PO Nagle stated that the responding officers asked § 87(2)(b) for his license, then instructed him to exit the vehicle. PO Nagle maintained that PO Couluris then instructed § 87(2)(b) to turn around and frisked § 87(2)(b)'s waist area. PO Couluris stated that § 87(2)(b) was searched at the location, although he could not remember by whom, while PO Nagle stated that § 87(2)(b) was never searched. Both officers maintained that § 87(2)(b)'s vehicle was never searched.

PO Couluris stated that an officer handed him § 87(2)(b)'s license, at which point he went to an unmarked police vehicle and conducted a warrant check. After the warrant check returned negative results, PO Couluris exited the unmarked vehicle, returned to his own police vehicle, moved it out of the roadway and began issuing summonses. The other units, except for Sgt. Alps, then left the location.

It was determined that § 87(2)(b) would be issued summonses when the warrant check came back negative. PO Nagle issued § 87(2)(b) a summons § 87(2)(b). § 87(2)(b) for which PO Couluris issued a summons. PO Couluris stated that as he completed the summonses, he observed § 87(2)(b) outside to the rear of his vehicle, though he hadn't specifically heard any officer request him to exit. PO Couluris stated that an officer took § 87(2)(b)'s keys from the ignition and gave them to him, while PO Nagle stated that he was never in possession of § 87(2)(b)'s keys and he did not believe PO Couluris was either. PO Nagle stated that Sgt. Alps approached he and PO Couluris while they were in their vehicle, retrieved the summons and handed them to § 87(2)(b). PO Couluris could not remember who handed § 87(2)(b) the summonses after they were completed. The officers then left the location.

PO Nagle stated that § 87(2)(b) was verbally combative throughout the incident, though never posed a physical threat to the officers. A crowd of about ten people had gathered at the location; PO Nagle did not speak to them. PO Nagle stated that PO Couluris prepared a Stop and Frisk Report.

Sgt. Thomas Alps

Sgt. Alps, a white male, 6'2", 195 lbs., provided a statement at the CCRB on July 5, 2006 (Enc. 13A-E).

On February 16, 2006, Sgt. Alps worked from 4:00 PM until 12:44 AM. He was the Anti-Crime supervisor and was working with PO Josh Rivera and PO John Berrio. He was in plainclothes and assigned to unmarked vehicle 951. He has no memo book entries regarding this incident.

On February 16, 2006, Sgt. Alps, PO Rivera and PO Berrio were driving southbound on Lenox Avenue toward 116th Street. They observed another marked patrol car chasing another vehicle with its lights and sirens on, attempting to pull it over. The two vehicles were travelling eastbound on 116th Street toward 5th Avenue at about 30-40 mph. Sgt. Alps instructed his operator, PO Rivera, to catch up to the vehicles to see what was going on. As they were driving toward the two vehicles, Sgt. Alps heard a radio transmission from PO Couluris, asking for assistance in helping stop a vehicle. Sgt. Alps' vehicle followed the two vehicles. They caught up to the vehicles at the intersection of West 116th Street and 5th Avenue, where the two vehicles were stopped. Sgt. Alps observed that PO Couluris and PO Nagle had their vehicle positioned in front of the vehicle they had been chasing, blocking it from moving forward. Sgt. Alps arrived after the two vehicles had stopped. When Sgt. Alps arrived, only PO Couluris' unit and his unit were present at the location. Sgt. Alps exited his vehicle and approached where PO Couluris was standing, which was next to the driver's side door of the vehicle he had been chasing. PO Nagle was standing on the passenger side of the vehicle. Sgt. Alps did not have his gun drawn as he approached the vehicle; he did not witness any other officer with his/her gun drawn. Sgt. Alps asked PO Couluris what was going on. PO Couluris explained that he was trying to issue a § 87(2)(b) summons to the motorist, § 87(2)(b).

§ 87(2)(b) several blocks back and § 87(2)(b) drove off while PO Couluris was in the process of doing so. PO Couluris and PO Nagle then pursued § 87(2)(b) to the location.

§ 87(2)(b) was screaming at PO Couluris, stating that the summons was unjustified. PO Couluris asked repeatedly for § 87(2)(b)'s documentation. Sgt. Alps immediately instructed PO Couluris and PO Nagle to move back and said that he would try to diffuse the situation. Several other units from Sgt. Alp's command responded; Sgt. Alps did not remember who these officers were, although he remembered that he was the only supervisor present. Sgt. Alps noticed that § 87(2)(b)'s vehicle was still running and in drive. In the rear seat were § 87(2)(b)'s two children, one who was crying hysterically. One of the kids was out of a safety seat. In fear of § 87(2)(b) taking off again, Sgt. Alps instructed him to turn the vehicle off and exit. § 87(2)(b) refused. § 87(2)(b) continued screaming about the summons being issued. Sgt. Alps told § 87(2)(b) that he didn't want to do this in front of his kids. § 87(2)(b) said, "Don't worry about my kids." Sgt. Alps again instructed § 87(2)(b) to exit his vehicle. § 87(2)(b) again refused. Sgt. Alps said, "What is it going to take to get you out of the car?" Sgt. Alps opened the vehicle's driver's side door; § 87(2)(b) then exited the vehicle on his own. Sgt. Alps did not make any physical contact with § 87(2)(b) as he exited the vehicle. § 87(2)(b) stood alongside the vehicle, near the rear driver's side door. Sgt. Alps instructed § 87(2)(b) to stand facing the vehicle with his hands against it; § 87(2)(b) complied. Sgt. Alps feared for his safety because § 87(2)(b) was irate, therefore he frisked him for weapons. He thought he was going to hit him. § 87(2)(b) did not have any weapons on him. § 87(2)(b) was never searched. § 87(2)(b)'s vehicle was never searched. Sgt. Alps asked § 87(2)(b) for his license, registration and insurance documentation. § 87(2)(b) produced his New York State driver's license, which Sgt. Alps handed to PO Couluris. § 87(2)(b) stated he could not find his insurance card or registration and did not provide them. Sgt. Alps told PO Couluris and PO Nagle to return to their vehicle and continue with the completion of the summonses.

Sgt. Alps tried to diffuse this situation by talking to § 87(2)(b) further. § 87(2)(b) didn't want to listen to Sgt. Alps. Sgt. Alps looked into the rear of the vehicle and asked the son if he was ok. § 87(2)(b) said, "Don't talk to my kids." Sgt. Alps asked § 87(2)(b) to leave his keys on the top of the car and to stay there because he was going to be issued summonses. He decided to leave § 87(2)(b) alone at his vehicle because he sensed that § 87(2)(b) was looking to continue arguing. Sgt. Alps believed that § 87(2)(b) wanted to make the officers do something wrong, so Sgt. Alps decided he would not allow that and not engage in an argument with him. Sgt. Alps walked over to PO Couluris to make sure he was writing the summonses. He instructed the other units, aside from PO Couluris and PO Nagle, to resume patrol. Sgt. Alps returned to his vehicle and sat inside it, watching § 87(2)(b) and waiting for the summonses to be completed. § 87(2)(b) approached Sgt. Alps and asked him for his shield number, which Sgt. Alps provided. § 87(2)(b) calmly said to Sgt. Alps, "I'm not mad at you, I'm mad at those officers." Sgt. Alps said that was fine, but that he was going to have to wait for the summonses. § 87(2)(b) returned to his vehicle. Several minutes later, § 87(2)(b) approached Sgt. Alps again and asked him if he could sit inside his car. Sgt. Alps said that he could, but asked him not to turn the vehicle on. § 87(2)(b) returned to his vehicle and got inside it. Sgt. Alps had instructed PO Couluris and PO Nagle to tap the siren when they were finished with the summonses so that Sgt. Alps could retrieve the summonses from them and hand them to § 87(2)(b) himself in order to avoid further interaction between § 87(2)(b) and the two officers. When PO Couluris tapped the siren, Sgt. Alps retrieved the summonses from the officers, walked over to § 87(2)(b) and handed them to him, which numbered about five. § 87(2)(b) began arguing about the justification of the summons. Sgt. Alps told him that the summonses could be argued in court and pointed out the court date. § 87(2)(b) told Sgt. Alps that he would be hearing from him. Sgt. Alps said, "No problem." Sgt. Alps returned and left the location. No other officer ever made physical contact with § 87(2)(b). § 87(2)(b) was never moved to the rear of the vehicle. Sgt. Alps did not remember if PO Mateojerez was at the location.

PO John Mateojerez

PO Mateojerez, a Hispanic male, 5'10", 205 lbs., provided a statement at the CCRB on May 17, 2006 (Enc. 12A-E).

On February 16, 2006, PO Mateojerez worked from 2:30 PM until 11:35 PM. He was assigned to sector D and working with PO Salmeron. He was in uniform and assigned to marked vehicle 1235. He has no memo book entries regarding this incident.

On February 16, 2006, PO Mateojerez and PO Salmeron heard a call asking for an additional unit to respond to West 116th Street and 5th Avenue. PO Mateojerez did not know who made the call. At the location, a marked police vehicle was pulled in front of a vehicle, blocking it, in the left lane traveling eastbound on West 116th Street. There were about 6-7 police vehicles there when PO Mateojerez arrived. PO Couluris and PO Nagle were present. Officers from the 25th Precinct were also present, in addition to several plainclothes units. Sgt. Alps may have been at the location. PO Mateojerez pulled his vehicle in behind the SUV, exited and approached the driver's side of § 87(2)(b)'s vehicle. Officers were instructing § 87(2)(b) to turn off his vehicle and provide his license and registration. The officers requested this multiple times; § 87(2)(b) refused to comply. § 87(2)(b) was very combative and uncooperative. § 87(2)(b)'s door was opened, PO Mateojerez did not know if officers or § 87(2)(b) opened it. Officers, PO Mateojerez did not know whom, physically pulled § 87(2)(b) out of the car and handed him to PO Mateojerez, who moved § 87(2)(b) to the rear of the vehicle. § 87(2)(b) was standing, facing the rear of his vehicle. PO Mateojerez held § 87(2)(b)'s hands behind his back at the rear of the vehicle. § 87(2)(b)'s two kids were in the backseat in the vehicle and crying. PO Mateojerez asked § 87(2)(b) why he did all this in front of his children. PO Mateojerez did not know if the kids were in safety seats. § 87(2)(b) kept trying to move his hands away from PO Mateojerez. PO Mateojerez told him to keep still and tried to calm him down. § 87(2)(b) finally stood still. After holding him for about a minute, supervisors told PO Mateojerez that the situation was over and told him to put § 87(2)(b) back in the vehicle. PO Mateojerez returned § 87(2)(b) to his vehicle and left the location with PO Salmeron. PO Mateojerez never saw any officer point his/her gun at § 87(2)(b). No officer ever pushed § 87(2)(b) into the rear of his vehicle. PO Mateojerez did not know if § 87(2)(b) was ever frisked or searched, or if his vehicle was ever searched. PO Mateojerez did not understand why § 87(2)(b) was not arrested, considering that the officers had chased him down the street.

PO Angelica Salmeron

PO Salmeron, a Hispanic female, 5'4", 120 lbs., provided a statement at the CCRB on May 17, 2006 (Enc. 11A-E).

On February 16, 2006, PO Salmeron worked from 1:30 PM until 10:05 PM. She was assigned to sector D and was working with PO Mateojerez. She was in uniform and assigned to marked vehicle 1235. She has no memo book entries regarding this incident. § 87(2)(g)

On this date, PO Salmeron had been out of the Police Academy about 5-6 weeks. At the location of the incident, other officers were instructing the motorist, § 87(2)(b) to get out of the vehicle and he refused. The vehicle's driver's side door was opened, PO Salmeron did not know if § 87(2)(b) or the officers opened the door. Several officers took § 87(2)(b) out of the car; PO Salmeron is certain the officers physically took § 87(2)(b) out, although she did not see this take place because she was on the other side of the vehicle. § 87(2)(b) was taken to the rear of the vehicle. PO Mateojerez was on the driver's side of the vehicle; PO Salmeron did not know

what he was doing. PO Salmeron and PO Mateojerez then returned to their vehicle. After several minutes, a supervisor said the situation was under control, so PO Salmeron and PO Mateojerez left the location. PO Salmeron never observed officers search either § 87(2)(b) or his vehicle. PO Salmeron never saw any officer point his/her gun at § 87(2)(b).

PO Josue Rivera

PO Rivera, a Hispanic male, 6'2", 230 lbs., provided a statement at the CCRB on July 12, 2006 (Enc. 14A-E).

On February 16, 2006, PO Rivera worked from 4:00 PM until 12:35 AM. He was assigned to Anti-Crime and was working with Sgt. Alps and PO Berrio. He was in plainclothes and assigned to unmarked vehicle 951. He has no memo book entries regarding this incident.

PO Rivera stated that when he arrived at the location of the incident, § 87(2)(b) was highly irate and not following the officers' instructions to take the keys out and put his hands on the window. Upon their arrival, Sgt. Alps instructed PO Rivera to move oncoming traffic away from the stopped vehicles. PO Rivera stood at the corner of West 116th Street and 5th Avenue, diverting traffic away from the location. Once he had that traffic cleared up, PO Rivera went to the back of the stopped vehicles and attempted to clear traffic there. After the traffic was cleared, PO Rivera got into his vehicle, backed it up into the correct lane of traffic and waited for Sgt. Alps. The officers then resumed patrol.

PO Rivera did not know if § 87(2)(b) was ever frisked or searched, or whether his vehicle was searched. He could not remember if he saw any officer approached § 87(2)(b) with a gun drawn. PO Rivera believed PO Berrio assisted with traffic as well. PO Rivera was at the location for about 15 minutes.

Officers Not Interviewed

Sgt. Alps stated that he was working with PO Rivera and PO Berrio at the time of the incident. § 87(2)(g)

Police Documentation

The SPRINT report (Enc. 16A) indicates that the call went out at 7:31 PM, sectors F and D arrived at 7:32 PM, sector D resumed patrol at 7:57 PM and the summonses were issued at 8:29 PM.

The Stop and Frisk log (Enc. 18A) lists report § 87(2)(b) as prepared for § 87(2)(b).

The roll call (Enc. 19A-C) indicates that PO Couluris and PO Nagle were on duty and assigned to sector F at the time of the incident, that PO Mateojerez and PO Salmeron were on duty and assigned to sector D and that Sgt. Alps, PO Rivera and PO Berrio were on duty and assigned to Anti-Crime.

§ 87(2)(b)'s CCRB History

§ 87(2)(b) has not filed any other CCRB complaints (Enc. 5A).

§ 87(2)(b)'s History of Criminal Convictions

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Subject Officer CCRB History

Neither PO Couluris, PO Nagle nor Sgt. Alps has any substantiated CCRB allegations (Enc. 2A-4A).

Disposition of the Summonses

§ 87(2)(b) received five summonses at the time of the incident. § 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Conclusions and Recommendations

Identification of Subject Officers

§ 87(2)(b) alleged that the two officers he had encountered while being issued a summons, PO Couluris and PO Nagle, were the two that approached him with their guns drawn, § 87(2)(g). While § 87(2)(b) alleged that either PO Couluris or PO Nagle frisked him, Sgt. Alps took responsibility for conducting the frisk, § 87(2)(g). § 87(2)(b) alleged that the same officer who frisked him also conducted the search. Sgt. Alps conducted the frisk, § 87(2)(g). § 87(2)(b) alleged that one of two additional officers conducted the vehicle search, although he could not specify which officer, in particular, it was. § 87(2)(g)

Undisputed and Disputed Facts

It is not disputed that PO Couluris began writing a § 87(2)(b) summons to § 87(2)(b) on West 116th Street and that § 87(2)(b) left the location prior to the summons being issued. It is not disputed that PO Couluris and PO Nagle pursued § 87(2)(b) until the intersection of West 116th Street and 5th Avenue, where both vehicles stopped. It is not disputed that PO Couluris and PO Nagle approached the vehicle. It is not disputed that other officers arrived at the location, including Sgt. Alps. It is not disputed that § 87(2)(b) was then frisked while standing outside his vehicle. It is not disputed that § 87(2)(b) was released with multiple summonses.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Credibility

§ 87(2)(g)
§ 87(2)(b) In his telephone statement, he alleged that officers physically removed him from his vehicle, then searched his vehicle. In his official statement, he alleged that officers pointed their guns at him and stated he got out of his vehicle on his own. He also alleged that officers frisked and searched him and searched his vehicle. § 87(2)(g)
§ 87(2)(b) He claimed that upon seeing PO Couluris issuing him a § 87(2)(b) summons, he asked the officer not to and, in response, PO Couluris said, “Ok.” § 87(2)(b) interpreted this as permission to leave the location. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(b) stated that he had his § 87(2)(b)-old son with him at the time of the incident, who was sitting in a child safety seat. In contrast, each officer stated that § 87(2)(b) had two children with him, one of whom was a young child out of a safety seat. § 87(2)(b) also claimed that he was searched, as was his vehicle, yet could not specify which officers conducted the searches. § 87(2)(b) could not provide descriptions of all of the officers present. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)

PO Couluris stated that supervisors immediately took over the situation once they arrived and that he had little dealing with § 87(2)(b) once they did. PO Couluris stated that he believed § 87(2)(b) was searched at the location, although he did not know by whom. § 87(2)(g) PO Nagle stated that several officers instructed § 87(2)(b) to exit the vehicle and he complied. He stated that PO Couluris then instructed § 87(2)(b) to face the vehicle and frisked his waist. § 87(2)(g)

PO Nagle stated that PO Couluris prepared the stop and frisk report, whereas the report indicates that PO Nagle did.

§ 87(2)(g) He took responsibility for requesting that § 87(2)(b) exit his vehicle and for frisking him. He stated that § 87(2)(b) was never searched, § 87(2)(g) He also stated that § 87(2)(b)'s vehicle was never searched, § 87(2)(g)

§ 87(2)(g)

Both PO Mateojerez and PO Nagle stated that officers, they could not identify whom, physically pulled § 87(2)(b) out of his vehicle, whereas PO Couluris, PO Nagle, Sgt. Alps and § 87(2)(b) himself all stated that § 87(2)(b) was instructed to exit his vehicle and he did so on his own. PO Mateojerez stated that once § 87(2)(b) was outside his vehicle, an officer handed him to PO Mateojerez, who moved him to the rear of the vehicle and held him there by holding his hands behind his back, § 87(2)(g) PO Mateojerez maintained that he had no other physical contact with § 87(2)(b) PO Mateojerez stated that he did not know if either § 87(2)(b) or his vehicle was ever searched; PO Salmeron stated that she did not observe either take place.

Allegations Not Pleaded

§ 87(2)(g)

Allegation A: PO George Couluris pointed his gun at § 87(2)(b)

Allegation B: PO James Nagle pointed his gun at § 87(2)(b)

§ 87(2)(b) alleged that as PO Couluris and PO Nagle approached his vehicle at the intersection of West 116th Street and 5th Avenue, they had their guns drawn and pointed at him. Both officers denied the allegation § 87(2)(g)

§ 87(2)(g)

Allegation C: Sgt. Thomas Alps frisked § 87(2)(b)

§ 87(2)(b) alleged that an officer, whom he believed to be either PO Couluris or PO Nagle, frisked him while he was outside his vehicle. Sgt. Alps stated that he alone frisked § 87(2)(b) for weapons.

Applicable New York search and seizure guidelines stipulate that an officer may lawfully frisk an individual when he “reasonably suspects that he is in danger of physical injury” (Enc. XXX).

§ 87(2)(g)
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§ 87(2)(g)
§ 87(2)(g)

Allegation D: Sgt. Alps searched § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Alps searched the pockets of his pants and took out his wallet. PO Nagle and Sgt. Alps stated that § 87(2)(b) was never searched throughout the course of the incident, which was corroborated by the stop and frisk report (Enc. 1A). § 87(2)(g) PO Couluris stated that he believed § 87(2)(b) was searched, although he did not know by whom. In addition, § 87(2)(b) stated that while outside the vehicle, an officer, he did not know whom, held his hands behind his back while he was frisked and searched, during which his wallet was removed from his pockets. While PO Mateojerez maintained that he did not know whether § 87(2)(b) was searched or not, he stated that he held § 87(2)(b)'s hands behind his back,

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Allegation E: An officer searched the car in which § 87(2)(b) was an occupant.

§ 87(2)(b) alleged that an officer, again he could not specifically identify whom, searched the interior of his vehicle while at the location. § 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: